

IN THE COURT OF THE XLIV ADDL. CITY CIVIL AND
SESSIONS JUDGE, AT BENGALURU (CCH-45)

Dated this the 3rd day of September, 2024

PRESENT: SRI. DODDEGOWDA.K, B.A., L.L.B.,
XLIV ADDL. CITY CIVIL AND SESSIONS
JUDGE, BENGALURU.

Ex. No.2585/2023

Decree Holder's Name :	Smt. Akhtar Begum aged about 63 years, W/o Abdul Aleem Sharief R/at No.16, BHEL Layout, Krishnappa Garden, Bannerghata Road, Bangalore-560076. (By Sri.M.V. Advocate)
	V/s
Judgment debtors	1. Mr. Mohammed Khaleelulla, aged about 39 years, S/o Shaik Mahaboob. 2. Shaik Mahaboob Alias Basha aged Major S/o Father name not known (Since diseased represented by his Lr's) 2(a) Smt. Sajid Banu,

	W/o Late. Shaik Mahaboob aged about 61 years, (b) Sri. Mohammed Kaleem Ulla S/o Late. Shaik Mahaboob aged about 42 years. (c) Sri. Mohammed Haneef S/o Late. Shaik Mahaboob aged about 40 years, (d) Smt. Naveed Banu D/o Late. Shaik Mahaboob aged about 38 years. (e) Smt. Waheed Banu D/o Late. Shaik Mahaboob aged about 36 years (f) Smt. Shaeda Banu D/o Late. Shaik Mahaboob aged about 34 years (g) Sri. Noor Ahmed S/o Late. Shaik Mahaboob aged about 32 years (h) Sri. Abdul Rahman S/o Late. Shaik Mahaboob aged about 31 years (I) Smt. Ayesha Sultana D/o Late. Shaik Mahaboob
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	aged about 26 years, (j) Smt. Shaheena Banu D/o Late. Shaik Mahaboob aged about 40 years, (k) Sri. Ahmed Ulla S/o Late. Shaik Mahaboob aged about 20 years All are residing at No.68 2nd Floor, Old pension Mohalla, Noor-UI- Huda Masjid (Opp Road) Bangalore Coty
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ORDERS ON IA NO.2 and 3

IA No.2 is filed by the DHR under Sec.151 of C.P.C seeking direction to the jurisdictional police to render police protection to the decree holder in order to execute the delivery warrant issued against the judgment debtors.

2. IA No.3 is filed by the DHR under Sec.151 of C.P.C for an order to break open the lock of the petition

schedule property to enforce the decree passed by this court.

3. It is contended in the affidavit accompanying the application that by an order dated 31/01/2024 this court issued delivery warrant against judgment debtor in respect of the execution schedule premises. Accordingly, the court bailiff visited the schedule premises with delivery warrant. Since the schedule premises was kept under lock and key by the judgment debtors, they could not execute the delivery warrant and therefore, the bailiff was forced to return the warrant. Hence, IA No.2 for necessary orders.

4. It is further contended that without the aid and assistance of police the lock of the schedule premises cannot be opened. Hence, IA No.3 for necessary police protection to enforce the decree.

5. Though sufficient opportunity was given to the JDR, they have not chosen to file objections to the applications. Consequently, objections to IA No.2 and 3 was taken as not filed vide order dated 15/04/2024.

6. Heard the counsel for the DHR perused the records, now the only point that arise for consideration of this court is;

1. Whether the IA No.2 and 3 filed under Sec.151 of C.P.C deserves to be allowed?

2. What order?

7 The findings of this court to the aforesaid point is :

POINT NO.1 : In the affirmative

POINT NO.2 : As per the final order for the following;

REASONS

8. It is contended by the DHR that this court vide order dated 31/01/2024 has issued delivery warrant

against the judgment debtor in respect of the execution schedule premises. When the court bailiff had visited the premises with warrant he found that the premises was kept under lock and key by the Judgment debtors and therefore, they could not execute the delivery warrant. It is further case of the DHR that the judgment debtor inspite of the order of the court failed to deliver the possession of the schedule premises hence, police protection is very much necessary for execution of a delivery warrant.

9. As stated above, the judgment debtors have not filed any objections to both the applications. This court vide judgment and decree dated 02/08/2023 in OS No.11033/2006 by decreeing the suit in part, directed the defendants/judgment debtor to quit and deliver the vacant possession of the suit schedule properties within 30 days. The writ petition filed by the JDR in WP

No.23465/2017 came to be dismissed by the Hon'ble High Court vide order dated 18/07/2022.

10. It is deposed on oath that when the court bailiff visited the schedule premises with delivery warrant to enforce the decree, the same could not be executed as the premises was kept under lock and key and therefore, the bailiff was forced to return the delivery warrant for want of necessary orders. When there is a judicial pronouncement in the nature of the decree the decree holder should enjoy the fruits of the decree, failing which, the very object of granting the decree would be defeated. It is also deposed on oath that the delivery warrant could not be executed without the aid and assistance of the police. Time and again it is held by the Hon'ble High Court of Karnataka that in fit cases the executing court can pass an order to render police protection to decree holder to execute the decree. Admittedly, no appeal is

preferred against the decree. If an order as sought for has not granted great hardship and prejudice would be caused to the DHR. On the other hand, if the police aid is given to the DHR and thus the decree of the court is enforced no hardship or injustice would be caused to the JDR. Hence, point for consideration is answered in the affirmative and this court proceeds to pass the following;

ORDER

IA No.2 and 3 filed by the DHR under Order Sec.151 of C.P.C are hereby allowed.

The concerned police shall provide required police aid to the decree holder to execute the delivery warrant issued against the judgment debtors in respect of the petition schedule property.

If necessary the DHR is permitted to break open the lock of the petition schedule

premises to obtain possession of the petition
schedule property, in accordance with the
decree.

(Dictated to the Stenographer, corrected and then
pronounced in the open court on this the **3rd day of
September, 2024**)

(DODDEGOWDA.K)
XLIV Addl City Civil and Session Judge,
Bengaluru

